

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**OBJECTIONS AND RESPONSE
TO DEFENSE RFJN**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7 as applicable to the relief opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court’s authority to consider the substance is under Code of Civil Procedure sections 391
2 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

3 5. This paper is timely filed for the August 26, 2026 hearing under Code of Civil Procedure
4 section 1005, subdivision (b), and California Rules of Court, rule 3.1300.

5 Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

6 **I. INTRODUCTION**

7 Defendant requests judicial notice of eight court-record items (Evidence Code sections 452 and
8 453). Plaintiff does not object to the Court taking judicial notice of the **existence and contents** of
9 those court records as writings. Plaintiff objects to Defendant’s use of those records for **inferences**
10 that are not judicially noticeable and that misstate what the records decide.

11 Judicial notice establishes that a document exists and what it says. It does not establish the truth
12 of disputed factual assertions within advocacy briefs, does not convert register-of-actions length
13 into proof of frivolousness, and does not expand an order beyond its four corners. (*Lockley v. Law*
14 *Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882; Evid. Code,
15 §§ 452, 453.)

16 **II. RESPONSE BY EXHIBIT**

17 **EXHIBIT A - FIRST AMENDED COMPLAINT IN CGC-25-631802**

18 **Existence / content:** No objection to judicial notice of the FAC as filed.

19 **Affirmative use:** Plaintiff relies on Exhibit A to show that the FAC pleads claims-handling, inves-
20 tigation, and fraud/UCL theories against the carrier, and that references to 911, body-worn camera,
21 and CAD materials appear in service of empty-file and investigation-noncompliance proof, not as
22 a prayer to re-enter judgment against the insured driver.

23 **Inference objections:** Plaintiff objects to any inference that Exhibit A proves (i) identity of pri-
24 mary right with CGC-21-594102, (ii) that Plaintiff is “relitigating” the PI verdict within the mean-
25 ing of Code of Civil Procedure section 391(b)(2), or (iii) that the FAC’s gravamen is solely “pro-
26 tected litigation conduct.” Those are legal conclusions for briefing, not noticeable facts. Plaintiff
27 further objects to any characterization of Exhibit A as “Defendant’s” First Amended Complaint;

Exhibit A is Plaintiff's FAC, and Defendant's memorandum may not re-label it.

EXHIBIT B - REGISTER OF ACTIONS, CGC-25-631802

Existence / content: No objection to judicial notice of the ROA as a court record of filings and events.

Inference objections: Plaintiff objects to any inference that ROA length, number of entries, or presence of discovery or motion practice equals "unmeritorious," "frivolous," or "solely intended to cause unnecessary delay" under section 391(b)(3). Docket volume is not a substitute for a *Morton* flagrant-abuse showing. (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 971-972.)

Invited-volume / defense-noticed motions: Plaintiff further objects to any inference that ROA volume caused by **Defendant-noticed** motions (Special Motion to Strike under section 425.16 filed April 9, 2026; Demurrer filed April 13, 2026; Motion to Strike under section 436 filed April 22, 2026) and by Plaintiff's obligated responses to those motions proves Plaintiff frivolousness. A party may not manufacture section 391(b)(3) "volume" by stacking three dispositive motions against a leave / SAC path, then count the predictable responses against the responding party. (See Plaintiff's Opposition MPA Arguments V and VI; Plaintiff's Declaration ¶¶ 10-14.)

EXHIBIT C - REGISTER OF ACTIONS, CGC-25-631801

Existence / content: No objection to judicial notice of the ROA as a court record.

Inference objections: Same as Exhibit B. Parallel case activity does not, by notice alone, prove frivolousness or section 391(b)(2) relitigation against the same defendant as the PI judgment.

EXHIBIT D - DEFENDANT'S ANTI-SLAPP MEMORANDUM OF POINTS AND AUTHORITIES IN CGC-25-631802

Existence / content: No objection to judicial notice that Defendant filed the attached anti-SLAPP memorandum and that the writing contains the arguments stated.

Inference objections: Plaintiff objects to treating advocacy assertions in Exhibit D as true. Judicial notice of a brief notices what was argued, not that the arguments are correct. Plaintiff further objects to using Exhibit D to relitigate anti-SLAPP merits under the guise of a vexatious-litigant motion.

1 **EXHIBIT E - ORDER GRANTING DEFENDANT’S SPECIAL MOTION**
2 **TO STRIKE (JULY 1, 2026) AND DENYING OTHER RELIEF**

3 **Existence / content:** No objection to judicial notice of the order as entered.

4 **Limitation:** Judicial notice is limited to what the order actually decided on its face: that the FAC
5 as framed arose from protected activity under the Court’s stated citation set, and that Plaintiff could
6 not establish the claims as framed because the litigation privilege barred them; amendment within
7 Case 802 was denied; other motions were taken off calendar as moot.

8 **Inference objections:** Plaintiff objects to any inference that Exhibit E (i) “effectively ended” all
9 possible claims against CSAA arising from claims handling, (ii) adjudicated non-communicative
10 concealment or empty-file investigation primary rights not reached by the order, (iii) establishes
11 “no reasonable probability of prevailing” under section 391.3 as to unadjudicated rights, or (iv)
12 finally determines issues still subject to appellate review. (*Baral v. Schnitt* (2016) 1 Cal.5th 376,
13 393-396; *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060.)
14 Defendant’s memorandum cites “RFJN Ex. F” for this July 1 order; any inference resting on that
15 mis-cite is unreliable. Judicial notice of Exhibit E does not cure a wrong exhibit pin in the moving
16 brief.

17 **EXHIBIT F - ORDER DENYING PLAINTIFF’S “PRAYER” AND CCP**
18 **SECTION 170.6 IN CGC-21-594102**

19 **Existence / content:** No objection to judicial notice of the order as a court record in the PI case.
20 Exhibit F is the personal-injury Prayer / section 170.6 order, not the July 1, 2026 anti-SLAPP order
21 (which is Exhibit E).

22 **Inference objections:** Plaintiff objects to any inference that Exhibit F proves forum shopping in
23 this carrier action, or that adverse rulings in the PI case convert distinct commercial claims into
24 section 391(b)(2) relitigation.

25 **EXHIBIT G - NOTICE OF ENTRY OF JUDGMENT IN CGC-21-594102**

26 **Existence / content:** No objection to judicial notice of the notice of entry of judgment.

27 **Inference objections:** Plaintiff objects to any inference that Exhibit G establishes section 391(b)(2)

1 finality against CSAA, or finality of issues beyond the negligence determination against the in-
2 sured. The judgment defendant was not CSAA. The appeal remains pending (see Exhibit H).

3 **EXHIBIT H - PLAINTIFF'S NOTICE OF APPEAL IN CGC-21-594102**

4 **Existence / content:** No objection to judicial notice of the notice of appeal.

5 **Affirmative use:** Exhibit H confirms that the PI judgment is on appeal (A173827). That pending
6 appeal undermines Defendant's "final determination" narrative for section 391(b)(2) as applied to
7 Plaintiff's ongoing commercial and appellate posture.

8 **Inference objections:** Plaintiff objects to any inference that filing an appeal while also pursuing
9 distinct carrier claims is itself vexatious.

10 **III. GENERAL OBJECTIONS TO DEFENSE INFERENCES**

11 Plaintiff specifically objects to the following recurring inferences, wherever they appear in the
12 moving papers:

- 13 1. **ROA length = frivolousness.** Denied as a noticeable fact; opposed as a legal conclusion.
- 14 2. **Defense-noticed motion volume = Plaintiff frivolousness.** Denied; ROA entries reflect-
15 ing Defendant's three-motion stack and Plaintiff's responses do not prove section 391(b)(3)
16 abuse.
- 17 3. **FAC = same primary right as the PI case.** Denied; opposed under *Crowley / Mycogen*.
- 18 4. **July 1 order = no probability on all theories against CSAA.** Denied; limited to the order's
19 four corners.
- 20 5. **Appeal pending + new carrier suit = section 391(b)(2) violation.** Denied; wrong defendant,
21 wrong primary right, incomplete finality.
- 22 6. **RFJN / authority volume = harassment.** Denied. Volume of requests for judicial no-
23 tice, notices of controlling or adverse authority, or lodging of statutes does not prove section
24 391(b)(3) abuse. Plaintiff tenders Wong RT 11 (pp. 7-8; Tx 79843794 / 79830359 / 79843899)
25 as Plaintiff's Exhibit D to show evidence-practice and incomplete-adjudication context: the
26 trial court instructed that Vehicle Code sections 22107 and 21804(a) were not part of the evi-
27 dence and that the jury was not permitted to consider them as evidence, period. Lodging law
28 for the record follows that framing and is not flagrant abuse under *Morton*. Plaintiff does not

ask this Department to reverse Wong or to decide A173827. (See Opp. MPA Argument VII; Decl. ¶¶ 22-23.)

7. **MPA Ex. F cite = Ex. E order.** Denied as a reliable pin; opposed as a record error.

8. **Ex. A = “Defendant’s” FAC.** Denied; Ex. A is Plaintiff’s FAC.

9. **RFJN date July 17 vs packet July 21.** Noted as packet inconsistency; does not expand noticeable inferences.

IV. CONCLUSION

Plaintiff requests that the Court:

1. Take judicial notice of Exhibits A through H solely as to existence and content as court records;
2. Decline to accept Defendant’s non-noticeable inferences described above;
3. Consider Exhibit A and Exhibit H affirmatively for the limited purposes stated;
4. Limit Exhibit E to what the July 1, 2026 order actually decided.

Dated: July 22, 2026



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Plaintiff, In Pro Per

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VALIDATION VERIFICATION

(CRC 2.100 through 2.111; CRC 2.256(b); CRC 2.257; CCP § 1010.6 / CRC 1.21)

I, the undersigned Plaintiff in propria persona, verify under penalty of perjury under the laws of the State of California that:

1. This paper complies with California Rules of Court, rules 2.100 through 2.111 (format), rule 2.256(b) (text-searchable PDF), and rule 2.257 (signature).
2. Electronic service of this paper is made in the context of Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21.
3. Cohort-wide OCR, bookmark, and SHA-256 attestations for the July 21 / August 2026 vexatious-litigant opposition packet are set out in the concurrently filed Declaration of Compliance (CRC 2.256 / 3.1110), which is not duplicated here.

Dated: July 22, 2026



Plaintiff in propria persona